

STATE OF NEW YORK

7380--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 25, 2025

Introduced by M. of A. CUNNINGHAM -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to setting standards for advertising deeply affordable housing

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 350-a-1 to read as follows:

3 § 350-a-1. Standards for advertising deeply affordable housing. 1. A
4 housing unit may only be advertised as "deeply affordable" if it is
5 affordable to a household making sixty percent or less of the area medi-
6 an income, as defined by the United States department of housing and
7 urban development.

8 2. (a) Describing a housing unit that does not meet the applicable
9 criteria of subdivision one of this section as deeply affordable in any
10 physical or digital promotional material created by a person or entity
11 with a financial interest in such housing unit shall be considered false
12 advertising for the purposes of section three hundred fifty of this
13 article.

14 (b) In cases where a person or entity is advertising housing units in
15 a building or housing development that are market rate along with units
16 which meet the definition of deeply affordable, such advertisement shall
17 clearly state either (i) the percentage of units in such building or
18 housing development that meet the definition of deeply affordable or
19 (ii) the number of units that meet the definition of deeply affordable
20 and the number of units that are market-rate.

21 3. When a municipal government or the state provide information to the
22 public about available deeply affordable housing units, they shall
23 adhere to the definition and advertising rules established pursuant to

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 this section. This includes public-facing communications, databases,
2 and promotional materials regarding available housing units.

3 4. The provisions of this section shall not be construed to impact
4 eligibility for tax credits, grants, or other incentives for affordabil-
5 ity programs with definitions that differ from those in this section;
6 provided, however, that advertisement of any housing unit under such a
7 tax credit, grant or other incentive program shall be governed by the
8 provisions of this section.

9 § 2. This act shall take effect on the one hundred eightieth day after
10 it shall have become a law.